

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

**Court of Appeal Case No.  
CA (PHC) 183/2018**

Provincial High Court of Kurunegala  
Application No. HCR 07/2015

Magistrate Court Case No. 3418/  
ejectment

In the matter of an Appeal under Article 154 (P)(6) of the Constitution read with Appellate rules of 1988 part II against Judgment delivered in the Provincial High Court of North Western Province (Holden in Kurunegala) in HCR 07/2015 on 2018/10/01; Order dated 2015/01/21 in Magistrates Court Case No. 3418/ ejectment.

**In the Magistrate Court**

Sathurusinghe Arachchige Anura  
Sathurusinghe,  
The Conservator General of Forests.

**Applicant**

**Vs.**

Herath Mudiyanseelage Somarathne,  
No, 345/1, Bogaswewa,  
Makulawa.

**Respondent**

**And between in the high Court**

Herath Mudiyanseelage Somarathne,  
No, 345/1, Bogaswewa,  
Makulawa.

**Respondent-Petitioner**

**Vs.**

1. Sathurusinghe Arachchige Anura  
Sathurusinghe,  
The Conservator General of Forests.

**Applicant- Respondent**

2. Hon. Attorney General,  
Attorney General Department,  
Colombo 12.

Respondent

And now between in the Court of Appeal

Herath Mudiyanseelage Somarathne,  
No, 345/1, Bogaswewa,  
Makulawa.

Respondent-Petitioner-Appellant

**Vs.**

1. Sathurusinghe Arachchige Anura  
Sathurusinghe,  
The Conservator General of Forests.

Applicant – Respondent- Respondent

2. Hon. Attorney General,  
Attorney General Department,  
Colombo 12.

Respondent- Respondent

Before: **Damith Thotawatte, J.**  
**K.M.S. Dissanayake, J.**

Counsels: Dr. Sunil Coorey with Ms. Sudarshani Coorey and N. Perera for  
the Respondent-Petitioner- Appellant.

P. Jayasuriya, SC instructed by N. Wickramasinghe for the 1<sup>st</sup> &  
2<sup>nd</sup> Respondents.

Argued: 26.02.2026

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|-------------------------------------|----------------------------------------------------------------------------------------------------------------------|
| Written submissions<br>tendered on: | 23.05.2022 By Respondent-Petitioner-Appellant<br>No Written Submissions filed by Applicant-Respondent-<br>Respondent |
| Judgment Delivered:                 | 23.06.2026                                                                                                           |

**Thotawatte, J.**

## **Introduction**

The present appeal has been preferred by the Respondent-Petitioner-Appellant (hereinafter sometimes referred to as the “Appellant”) against the order dated 01.10.2018 of the learned High Court Judge of the High Court of the North Western Province holden at Kurunegala in HCR 07/2015 whereby the learned High Court Judge dismissed the revision application preferred against the order dated 21.01.2015 of the learned Magistrate of Galgamuwa in Case No. 3418/Ejectment made under the provisions of the State Lands (Recovery of Possession) Act No. 7 of 1979 as amended (hereinafter referred to as “the Act”).

On 26.02.2026, learned Counsel appearing for both parties agreed that the judgment to be delivered in the present appeal, CA (PHC) 183/2018, would also govern and be binding upon the parties in the connected appeal, CA (PHC) 184/2018, which likewise arises from the same impugned order dated 01.10.2018 made by the learned High Court Judge of Kurunegala.

## **Factual Matrix**

The Conservator General of Forests, acting as the Competent Authority under the Act, instituted proceedings before the learned Magistrate seeking recovery of possession of the land described in the schedule to the application and the ejectment of the Appellant therefrom.

Upon summons being issued under Section 6 of the Act, the Appellant appeared and showed cause. The principal position adopted by the Appellant was that the land described in the schedule to the application had not been properly identified. It was further

contended that the larger extent from which the disputed land was said to be derived contained lands belonging to private parties as well as lands belonging to the Land Reform Commission, that the Appellant and his predecessors had possessed the land for several decades, and that the Appellant claimed possession on the strength of deeds relied upon by him.

The learned Magistrate, by order dated 21.01.2015, directed the ejectment of the Appellant from the land described in the schedule to the application. Being aggrieved by the said order, the Appellant preferred a revision application before the learned High Court Judge of the North Western Province holden at Kurunegala. The learned High Court Judge, by order dated 01.10.2018, dismissed the said revision application and affirmed the order of the learned Magistrate. Being dissatisfied with the said order, the Appellant has preferred the present appeal.

The principal contention advanced before this Court is that the application for ejectment was fundamentally defective as the land sought to be recovered had not been sufficiently identified. Learned Counsel for the Appellant submitted that the schedule referred to an undivided portion of land without adequately identifying the precise corpus from which ejectment was sought and that neither the learned Magistrate nor the learned High Court Judge properly addressed that issue.

### **The statutory framework under State Lands (Recovery of Possession) Act**

Section 3 of the Act empowers a competent authority, where he is of the opinion that any land is State land and that a person is in unauthorized possession or occupation thereof, to issue a quit notice requiring such person to vacate the land. Section 5 authorizes the competent authority to institute proceedings before the Magistrate's Court where such notice is not complied with. Under Section 5(1)(a)(ii), the application need only state that the land described in the schedule is, in the opinion of the competent authority, State land. Following the amendments introduced by Act No. 29 of 1983, the statutory scheme deliberately restricts the scope of inquiry before the Magistrate. The Act further defines unauthorized possession or occupation to include possession or occupation by encroachment upon State land.

## The scope of the Magistrate's inquiry

The scope of the Magistrate's inquiry under Section 9 has repeatedly been considered by the superior courts.

In *Divisional Secretary, Manikhinna v. Buhardeen*<sup>1</sup>, the Court emphasized that the person summoned must establish possession or occupation upon a valid permit or other written authority of the State and that the Magistrate is not called upon to adjudicate disputed questions of title. Likewise, in *Namunukula Plantations PLC v. Nimal Punchihewa*<sup>2</sup>, it was observed that the legislative amendments introduced in 1983 were intended to provide an expeditious mechanism for recovery of State land and that any possession without a valid permit or written authority of the State constitutes unauthorized possession. Similar principles have been reaffirmed in *N.D. Vimal v. Competent Authority*<sup>3</sup> and other decisions interpreting the Act.

In the present case, the objections raised by the Appellant before the learned Magistrate were directed primarily towards questions of title, ownership, long possession, competing proprietary claims, and the alleged existence of private interests within the larger extent of land. Such matters fall outside the limited inquiry contemplated by Section 9 of the Act.

Once the learned Magistrate found that the Appellant had failed to establish possession or occupation of the land upon a valid permit or other written authority of the State granted in accordance with any written law, the inquiry stood confined to the limited statutory framework contemplated by Section 9 of the Act. As observed by the Supreme Court in *Herath v. Morgan Engineering (Pvt) Ltd*<sup>4</sup>, the scope of the inquiry before the Magistrate is restricted to determining whether such permit or written authority exists and remains in force. Accordingly, the learned Magistrate acted well within the jurisdiction conferred upon that Court in proceeding to make order for the ejectment of the Appellant upon finding that no such permit or written authority had been established.

The learned High Court Judge, exercising revisionary jurisdiction, was required to determine whether the order of the learned Magistrate disclosed any illegality, procedural irregularity, jurisdictional defect, denial of natural justice, or other exceptional circumstance warranting revisionary intervention. Revisionary jurisdiction is not intended

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<sup>1</sup> [2019] 02 SLR 346

<sup>2</sup> C.A. (PHC) APN 29/2016 Decided on 09.07.2018

<sup>3</sup> CA (PHC) 48/2016 Decided on 02.09.2025

<sup>4</sup> 2013 01 Sri.LR 222, SC APPEAL NO. 214/12 decided on 27.07.2013

to provide a rehearing on the merits nor to permit a reassessment of factual disputes which properly fall outside the scope of the statutory inquiry.

Having considered the material placed before Court, I am unable to conclude that the learned High Court Judge erred in declining to interfere with the order of the learned Magistrate. The Appellant has failed to demonstrate any jurisdictional error, illegality, procedural impropriety, or other exceptional circumstance justifying revisionary intervention.

## **Conclusion**

For the foregoing reasons, I affirm the order of the learned High Court Judge dated 01.10.2018.

The appeal is accordingly dismissed, with costs fixed at Rs. 30,000/- to be paid by the Appellant to the Court.

Under the terms of the agreement of the parties recorded on 26.02.2026, in CA (PHC) 183/18 and CA (PHC) 184/18, CA (PHC) 184/18 shall stand dismissed on the same terms (including as to costs) as CA (PHC) 183/18.

**Judge of the Court of Appeal**

**K.M.S. Dissanayake, J.**

I agree

**Judge of the Court of Appeal**